

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUMC065472: LISA E HANSEN vs HAMIDREZA MALEKZADEH KASHANI
08/21/2026 in Department 43
Motion to Set Aside/Vacate Default**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants Hamidreza Malekzadeh Kashani's and Carpet Galleria Flooring, Kitchen & Bath Inc.'s. Motion to Vacate and Set Aside Entry of Defaults and, to the Extent Applicable, Default Judgement.

Tentative Ruling: The Court intends to GRANT the Motion to Set Aside Entry of Default by Defendants Kashani and Carpet Galleria Flooring, Kitchen & Bath Inc. □ Default was entered as a result of Defendants' counsel's mistake, inadvertence or neglect (fault) (Code of Civ. Proc., §473, subd. (b)) as established by a declaration submitted by Defendants' counsel, Kenneth H. Hahn, Attorney at Law, Lim, Han & Delgado APC. □

Mr. Hahn sets forth the following timeline of events: Plaintiffs filed the action on April 30, 2206; responsive pleadings were due on June 1, 2026; Defendants retained Mr. Hahn on May 27, 2026; on May 31, 2026, Mr. Hahn emailed Plaintiffs requesting copies of the Proofs of Service, and requested a two-week extension through June 15, 2026, for filing of the answer and to discuss resolution. Entry of default was requested and default was entered on June 2, 2026, the day after the answer was due.

Relief from default is mandatory when premised on attorney error, if:

1. The motion is filed within six months after entry of default judgment;
2. The motion is supported by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence surprise or neglect; and,
3. The motion is accompanied by the responsive pleading the defendant proposes to file if relief is granted.

Defendants' motion meets these three criteria. The motion is granted. Default is ordered vacated. Defendants are granted leave to file the proposed answer on or before September 12, 2026.

NOTE: The Court recognizes that plaintiff is self-represented, however, self-represented litigants are not entitled to special treatment by the court, and the same rules apply to self-represented litigants that apply to attorneys. Plaintiff is admonished for refusing to grant counsel a routine extension to respond to the complaint and rushing to enter default resulting in this motion. The parties are expected to cooperate and work efficiently together and not burden the court with unnecessary matters. (See *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, re civility in litigation.)

Moving party is ordered to serve notice of the Court's ruling.